

**BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**

WAY2GO CARGO CORP.,

Complainant,

v.

DOCKET NO. 25-14

OAK WAY CARGO, LLC,

Respondent.

**COMPLAINANT’S MOTION TO OVERRULE RESPONDENT’S
OBJECTIONS AND COMPEL BETTER ANSWERS**

Complainant, WAY2GO CARGO CORP., (“Complainant” or “Way2Go”), by and through undersigned counsel and pursuant to 46 C.F.R. § 502.150(a) and Federal Rule of Civil Procedure 37 hereby moves for an order overruling Respondent, OAK WAY CARGO, LLC (“Respondent” or “Oak Way”)’s objections to Complainant’s discovery requests and compelling better answers, and in support thereof, states as follows:

1. Complainant served its First Set of Interrogatories (“Interrogatories”) and First Request for Production to Respondent (“RFP”) (collectively “Complainant’s Discovery”) on November 26, 2025.

2. Following a two-week extension, on January 9, 2026, Respondent served its Responses and Objections to Complainant’s Discovery.

3. In its Discovery Responses, Respondent asserted objections to *each and every* Interrogatory and nearly every RFP, none of which were made on a good faith basis.

4. As a result of Respondent’s evasive responses, on January 16, 2026, Complainant sent a deficiency letter to Respondent, detailing the exact deficiencies in Respondent’s Discovery

Responses and requesting that the deficiencies be cured. *A copy of the Deficiency Letter is attached as Exhibit A.*

5. Respondent subsequently served its Amended Responses and Objections to RFP¹ on February 2, 2026. *A copy of Respondent's original and amended Responses to RFP are attached as Composite Exhibit C.*

6. Respondent also served Amended Responses and Objections to Interrogatories² on February 10, 2026. *A copy of Respondent's Amended Responses to Interrogatories are attached as Exhibit D.*

7. For the reasons set forth below, Respondent's objections should be overruled, and Respondent should be ordered to provide better answers to Complainant's Interrogatories.

8. As a result of Respondent's refusal to withdraw its improper objections and provide complete responses, Complainant is left with no other option but to seek intervention from the ALJ, and therefore, requests that Respondent be ordered to pay reasonable expenses incurred in making the motion, including attorney's fees, pursuant to Federal Rule of Civil Procedure 37(a)(5).

ARGUMENT

I. Oak Way's objections based on relevance, scope, proportionality, and harassment are improper and should be overruled.

Respondent's relevance, scope, and proportionality objections to Discovery Requests are improper as each of the requests seek information relevant to Oak Way's violation of 46 U.S.C. § 40901(a). Respondent cannot show how any of the RFPs or Interrogatories are harassing such that a Response is not required.

¹ Respondent's Amended Responses and Objections to RFP includes an amended response to only RFP Number 28.

² Respondent's Amended Responses and Objections to Interrogatories only differs from the original response in that the answers are verified by Oak Way's representative.

Interrogatories 1, 6, 7, 10, 16, and 20 and RFPs 17, 18, 21, 23, and 38 seek information regarding the structure of Oak Way and how it operates in relation to Oak Bridge Way, to which Respondent objected claiming they are irrelevant, outside the scope of discovery, and in some cases harassing. Oak Way's owner, Raphael Alves, testified under oath³ that Respondent is not violating the Shipping Act because it is operating as an agent of Oak Bridge Way LTDA, which is a foreign-registered NVOCC. *See a copy of the Transcript of the Testimony of Raphael Alves from the Injunction Hearing attached as **Exhibit B** at p. 40:3-9. [W2G 0044].* This information is relevant to the instant claim, because Oak Way cannot circumvent licensure requirements simply by calling itself an agent of a foreign-registered NVOCC while it continues to conduct NVOCC or freight forwarder activities in the US without the required license. Information regarding the supposed "agency relationship" between the two entities is directly related to the factual analysis required to show that Oak Way is acting in violation of § 40901(a).

Next, Oak Way objected to RFPs 2, 3, 12–20, 24, 25, 30, and 32–37 and Interrogatories 9, 12, 15, and 18 on the basis of relevance, proportionality, and/or harassment. These objections are improper as the requests seek information necessary to determine whether Oak was carrying out NVOCC or freight forwarder functions or representing itself as an OTI in violation of § 40901(a). Moreover, the requests seek information that is relevant based on Oak Way having admitted that it was "finalizing" shipments initiated by Way2Go. *See Exhibit B at pp. 18:15-21, 19:10-18. [W2G 0022-23].*

Oak Way objects to RFPs 5, 6, and 29, claiming that the financial information requested is irrelevant or not proportional to the needs of the case. However, evidence of Oak Way collecting

³ This testimony was provided by Oak Way's principle during an evidentiary hearing on Complainant's Motion for Preliminary Injunction under 46 U.S.C. § 41306(a) in Case No. 25-CV-23445-KMW pending before the U.S. District Court for the Southern District of Florida.

freight monies or receiving compensation is relevant to its operating or holding itself out as an OTI, in violation of § 40901(a).

Last, Respondent asserts relevance objections to Interrogatory 13 and RFP 4, which seek information regarding Oak Way's application for an OTI license. The license application is directly related to Oak Way's operation as an OTI and contradicts its purported defense or excuse that it operates merely as an agent for another NVOCC.

II. Oak Way should be compelled to provide better answers to Interrogatories.

In Answers to Interrogatories Nos. 2, 3, 4, 5, and 11, Respondent disingenuously maintains the objections that these Interrogatories presuppose certain facts, however, this is not a proper objection. Moreover, Respondent is aware that each of the facts "presupposed" are informed by testimony and evidence presented in the directly related preliminary injunction matter.

Similarly, Respondent improperly objects to Interrogatories 8, 17, 18, and 19, based on the assertion that the Interrogatories seek information that Oak Way would not have access to. These objections are particularly disingenuous as Oak Way's principal testified that there were shipments initiated by Way2Go that Oak Way took over to "finalize," and only Oak Way has information on the details of those shipments.

Last, Alves's testimony established that Oak Way was authorized by Nanoei Alves, to "take over" or "finalize" shipments that were initiated by Way2Go. [W2G 0022-23]. Respondent asserts a disingenuous vagueness objection to Interrogatory 14, which seeks information about the operations testified to by its principle under oath.

Respondent relies on the above improper objections to avoid answering the Interrogatories. Respondent should be compelled to answer each of the Interrogatories in full.

WHEREFORE, Complainant, WAY2GO CARGO CORP., respectfully requests that this Commission enter an order 1) overruling Respondent's, OAK WAY CARGO, LLC, objections to Interrogatories Numbers 1–20 and Requests for Production Numbers 1-6, 12-21, 23-25, 29, 30, and 32-38; 2) compelling Respondent to provide complete answers to Interrogatories; 3) requiring Respondent to pay reasonable expenses incurred by the Complainant in seeking this relief, including attorney's fees; and 4) granting such other and further relief as the Commission deems just and proper.

CERTIFICATE OF CONFERRAL

The undersigned counsel certifies that, prior to filing this motion, counsel for Complainant, Way2Go Cargo Corp. conferred with counsel for Respondent Oak Way Cargo, LLC via video teleconference on January 29, 2026, regarding the relief requested herein. Counsel for Respondent opposes the requested relief.

Dated: February 24, 2026

Respectfully submitted,

BY: /s/ Jennifer S. Roldan
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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing was filed via electronic mail upon the Office of the Secretary at secretary@fmc.gov and served upon all counsel of record for OAK WAY CARGO, LLC at zkass@b2b.legal on this 24th day of February 2026.

BY: /s/ Jennifer S. Roldan
Jennifer Santos Roldan, Esq.

Exhibit “A”

Exhibit “B”

Composite Exhibit “C”

Exhibit “D”